

CHAPTER 27.

An Act to amend the Ballot Act, 1872, so as to enable any blind voter at a poll regulated by that Act to avail himself of the assistance of a relative or friend, and for purposes connected with the matter aforesaid. [18th July 1933.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Ballot Act, 1872, shall have effect as if in the rules for elections set out in Part I of the First Schedule to that Act, there were inserted after rule 26 the following rule :—

“ 26A. Where any voter who is accompanied by another person makes application to the presiding officer to be allowed on the ground of blindness to vote with the assistance of the person accompanying him (hereinafter referred to as “the companion”), the presiding officer shall require the voter to declare orally whether he is so incapacitated by his blindness as to be unable to vote without assistance, and if he is satisfied that the voter is so incapacitated and is also satisfied by a written declaration made by the companion in accordance with this rule that the companion is a qualified person within the meaning of this rule, and has not previously assisted more than one blind person to vote at the election then taking place, shall grant the application, and thereupon anything which is by this Act required to be done to or by the said voter in connection with the giving of his vote, may, notwithstanding anything to the contrary in this Act, be done to, or with the assistance of, the companion, as the case may be.

“ For the purposes of this rule, any of the following persons shall be qualified to assist a

Right of
blind voter
to vote with
assistance of
a relative or
friend.

35 & 36 Vict.
c. 33.

blind voter to vote at an election, namely, any person who is entitled to vote at that election, and any person who is the father, mother, brother, sister, husband, wife, son, or daughter of the blind voter, and has attained the age of twenty-one.

“The declaration to be made by the companion for the purposes of this rule shall be in the form set out in the Second Schedule to this Act, or in a form as near thereto as circumstances admit, and shall be made in the presence of, and be given to, the presiding officer, and that officer shall thereupon attest it.

“Any such declaration shall be exempt from stamp duty, and no fee or other payment shall be charged in respect of it.

“The name and number on the register of voters of every voter whose vote is given in accordance with this rule, and the name and address of the companion, shall be entered in a list (in this Act referred to as “the list of blind voters assisted by other persons”).”

(2) Section four of the Ballot Act, 1872 (which provides for the punishment of persons infringing the secrecy of the ballot in any manner specified therein) shall have effect as if at the end of the first paragraph of that section there were inserted the words “No person, “having undertaken to assist a blind voter to vote, “shall communicate to any other person any information as to the candidate for whom that voter intends “his vote to be given or for whom his vote has been “given, or as to the number on the back of the ballot “paper issued at a polling station for the use of that “voter.”

(3) The amendments specified in the Schedule to this Act, being minor and consequential amendments of the Ballot Act, 1872, shall be made in the provisions of that Act mentioned in the said Schedule.

Short title,
commence-
ment,
construction
and extent.

2.—(1) This Act may be cited as the Blind Voters Act, 1933.

(2) This Act shall come into operation on the first day of January, nineteen hundred and thirty-four.

(3) References in any Act passed before the commencement of this Act to the Ballot Act, 1872, shall be construed as references to that Act as amended by this Act.

(4) This Act, in so far as it relates to matters in respect of which the Parliament of Northern Ireland has power to make laws, shall not extend to Northern Ireland.

SCHEDULE.

MINOR AND CONSEQUENTIAL AMENDMENTS OF THE Section 1. BALLOT ACT, 1872.

1. The rules for elections set out in Part I of the First Schedule to the Ballot Act, 1872, shall have effect subject to the following modifications, that is to say :—

- (a) in rule 21 (which requires the presiding officer at a polling station to exclude therefrom all persons except electors, the clerks, the agents of the candidates and the constables on duty) there shall be inserted after the word “candidates” the words “any person accompanying a blind voter for the purpose of assisting him to vote”;
- (b) in paragraph (5) of rule 29 (which specifies the things which a presiding officer must seal up and deliver to the returning officer on the conclusion of the poll), after the words “tendered votes list” there shall be inserted the words “the list of blind voters assisted by other persons,” and after the words “unable to read” there shall be inserted the words “the declarations made by persons assisting blind voters to vote”;
- (c) in rule 38 (which requires certain documents relating to an election to be forwarded by the returning officer to the Clerk of the Crown in Chancery), after the words “tendered votes lists,” there shall be inserted the words “lists of blind voters assisted by other persons,” and after the words “statements relating thereto,” there shall be inserted the words “declarations made by persons assisting blind voters to vote.”

2. The Second Schedule to the Ballot Act, 1872, shall have effect as if the following form were inserted therein :—

“ Form of declaration to be made by a person assisting a blind voter to vote.

“ I, _____ of _____
having been requested to assist _____, whose number
on the register is _____, to record his vote, hereby declare that
* I am entitled to vote at this election, or * that I am the
† _____ of the said voter and have attained the age
of twenty-one years, and that I have not previously assisted any
blind person [except _____ of _____]
]† to vote at the election now taking place.

** Strike out
inappro-
priate words.*

*† State the
relationship
of the com-
panion to the
voter.*

*‡ Strike out
the words in
square
brackets, if
inappro-
priate.*

(Signature of the person
making the declaration)

(date).....

“ I, the undersigned, being the presiding officer for
the _____ polling station for the [county]‡
[borough]‡ of _____, hereby certify that the
above declaration, having been first read to the above-named
declarant, was signed by the declarant in my presence.

(Signature).....

(date)..... : (hour)

“ N.B.—If the person making the above declaration
knowingly and wilfully makes therein a statement false in a
material particular, he will be guilty of an offence.”

CHAPTER 28.

An Act to enable Municipal Corporations to
provide for the audit of their accounts and
of the accounts of their officers by district
auditors or by other qualified accountants.

[18th July 1933.]

BE it enacted by the King's most Excellent Majesty,
by and with the advice and consent of the Lords
Spiritual and Temporal, and Commons, in this present